SUMTER COUNTY CITIZENS FOR TRANSPARENCY

BYLAWS AND OPERATING AGREEMENT

Georgia Nonprofit Corporation | Intended IRC § 501(c)(3) Organization

ARTICLE I — NAME, STATUS AND OFFICES

1.1 Name. The legal name shall be **Sumter County Citizens For Transparency, Inc.** (the "Corporation"), subject to confirmation of name availability and its filed Articles of Incorporation. The Corporation may use "**SCC4T**" as a public-facing name.

1.2 Organization. The Corporation shall be organized under the Georgia Nonprofit Corporation Code and operated exclusively for purposes described in IRC § 501(c)(3). These Bylaws are subordinate to applicable law and the Articles of Incorporation.

1.3 Offices and mailing address. The Corporation's mailing address is **132 W. Lamar Street, Americus, GA 31709.** The principal office shall be at that address unless otherwise designated by Board resolution. The registered office and registered agent shall be as stated in the Georgia Secretary of State records and may be changed in accordance with law.

ARTICLE II — MISSION AND TAX-EXEMPT LIMITATIONS

2.1 Mission. To advance charitable and educational purposes by informing the public about local government operations, access to public records, environmental and land-use decisions, public infrastructure, and civic participation; by providing factual research and public educational programs; and by supporting lawful, nonpartisan community engagement in Sumter County and surrounding communities.

2.2 Activities. Activities may include educational forums, research reports, public-records education, environmental education and monitoring, community workshops, publications, and lawful advocacy consistent with § 501(c)(3).

2.3 Restrictions. No part of net earnings shall inure to the benefit of any private person, except reasonable compensation for services and payments furthering exempt purposes. The Corporation shall not participate or intervene in any political campaign for or against any candidate for public office. No substantial part of its activities shall consist of attempting to influence legislation, except as permitted by law and any valid tax election. The Corporation shall not conduct activities inconsistent with § 501(c)(3).

2.4 Independence. The Corporation shall be nonpartisan and shall not endorse or oppose candidates. Individual directors and volunteers may act personally, but shall not imply that they speak for the Corporation without authorization.

ARTICLE III — MEMBERSHIP

3.1 Corporate membership. The Corporation shall have no statutory voting members. Supporters, volunteers, donors, and persons described publicly as "members" shall not thereby acquire voting

or other membership rights under the Georgia Nonprofit Corporation Code. This selection must match the Articles of Incorporation.

3.2 Participation. The Board may establish supporter categories, dues, volunteer guidelines, and advisory groups without granting statutory membership rights.

ARTICLE IV — BOARD OF DIRECTORS

4.1 Authority. The Board shall direct and oversee the affairs, property, programs, compliance, and finances of the Corporation.

4.2 Number and qualifications. The Board shall consist of not fewer than three (3) directors, with the exact number set by Board resolution. Directors must be at least 18 years old, support the mission, and satisfy applicable legal requirements.

4.3 Initial directors, election and terms. The founding directors are Kirk Lyman-Barner (Co-Chair), Kaitie Hall Minich (Co-Chair), and Lisa Courtney (Treasurer). Thereafter directors shall be elected by a majority of directors then in office and serve until their successors are elected and qualified, unless earlier removed or resigned.

4.4 Vacancies and removal. A vacancy may be filled by majority vote of remaining directors, subject to law. A director may resign in writing or be removed as permitted by Georgia law and the Articles, following reasonable notice and an opportunity to respond.

4.5 Compensation. Directors ordinarily serve without compensation as directors but may receive reasonable reimbursement; any separate paid engagement requires advance conflict review and approval by disinterested directors.

ARTICLE V — BOARD MEETINGS AND VOTING

5.1 Meetings and remote participation. The Board shall meet at least quarterly and hold an annual organizational meeting in January. Board meetings may be held in person, by Zoom or comparable video-conferencing service, by telephone conference, or by other means of remote communication permitted by Georgia law, provided all participating directors can hear one another simultaneously. Directors participating by such means shall be deemed present in person for quorum and voting purposes.

5.2 Electronic notice. Regular meetings require at least seven days' notice; special meetings require at least two days' notice unless waived or a different mandatory legal requirement applies. Notice may be delivered by email or other electronic communication to the address or contact method designated by each director, subject to applicable law. Notices for remote meetings shall include the date, time, and instructions or link needed to participate. The Secretary shall maintain current director contact information and evidence of notices.

5.3 Quorum and votes. A majority of directors in office constitutes a quorum, unless applicable law or the Articles require otherwise. Unless a higher threshold applies, action requires a majority of directors present when a quorum exists.

5.4 No proxy voting. Directors must vote personally when participating in a duly convened meeting, including through permitted remote communication. Voting by proxy is not permitted; no director

may delegate their vote to another person. This prohibition does not prevent valid action without a meeting by written consent as authorized by law and these Bylaws.

5.5 Written action. Action without a meeting may be taken only in the manner authorized by Georgia law; written consents shall be retained with the minutes. Written consent is distinct from proxy voting.

5.6 Records. The Secretary shall maintain minutes documenting attendance, motions, votes, recusals, and resolutions. Board records are internal corporate records and are not automatically subject to Georgia public open-meetings requirements.

5.7 Parliamentary procedure. All meetings of the Board of Directors and all meetings of Board working groups and committees shall be conducted in accordance with the current edition of Robert's Rules of Order Newly Revised, to the extent consistent with these Bylaws, the Articles of Incorporation, and applicable law.

ARTICLE VI — OFFICERS

6.1 Positions. The officers shall consist of two Co-Chairs, a Secretary, and a Treasurer. The founding Co-Chairs are Kirk Lyman-Barner and Kaitie Hall Minich; the founding Treasurer is Lisa Courtney. The Board shall appoint a Secretary, who may also hold another office to the extent permitted by law. The Board may create additional officer positions.

6.2 Election and terms. Following the founding appointments, the Board shall elect officers annually. Officers serve until their successors are elected or until earlier resignation or removal. Each Co-Chair shall have equal standing and authority, subject to these Bylaws and Board resolutions.

6.3 Duties. The Co-Chairs shall jointly coordinate governance and organizational leadership; either Co-Chair may preside at Board meetings and represent the Corporation within authority delegated by the Board. The Co-Chairs shall coordinate meeting leadership by mutual agreement or Board direction. The Secretary keeps minutes and corporate records; the Treasurer oversees budgets, bank accounts, reports, and financial controls.

6.4 Authority. Neither Co-Chair nor any other officer may bind the Corporation to a contract, public position, litigation, or material expenditure beyond authority delegated by Board resolution.

ARTICLE VII — COMMITTEES AND PUBLIC COMMUNICATIONS

7.1 Committees. The Board may establish research, environmental monitoring, public education, finance, and outreach committees, define their scope, and appoint chairs. Committees may not exercise reserved Board powers except as permitted by law.

7.2 Accuracy and transparency. Public reports shall distinguish verified facts, analysis, allegations, and opinions; maintain source records; correct material errors promptly; and respect privacy and lawful confidentiality.

7.3 Spokespersons. Only authorized persons may issue official statements, represent positions as those of the Corporation, or use its name in fundraising or litigation.

ARTICLE VIII — FINANCES AND ACCOUNTABILITY

8.1 Fiscal year and budget. The fiscal year ends [December 31]. The Board shall adopt an annual budget and review financial statements at least quarterly.

8.2 Funds and approvals. All receipts shall be deposited in accounts titled to the Corporation. Expenditures above **[$1,000]** require approval by two authorized persons; expenditures above **[$5,000]** require prior Board approval, unless budgeted under an approved written policy.

8.3 Donations. Gifts shall be accepted only when consistent with mission and law. Restricted gifts shall be tracked and used for their stated lawful purposes. Donors do not acquire governance authority through donations.

8.4 Reports. The Treasurer shall coordinate applicable IRS Form 990-series filings, Georgia annual corporate registrations, charitable solicitation compliance, and other required filings. The Board shall annually review internal controls.

8.5 Records retention. The Board shall adopt a written document retention, whistleblower, expense reimbursement, and conflict-of-interest policy; preserve records subject to pending requests, disputes, or litigation.

ARTICLE IX — BANK ACCOUNTS AND BANKING AUTHORITY

9.1 Corporate accounts. All funds of the Corporation shall be deposited in bank or other financial-institution accounts opened and maintained in the legal name of Sumter County Citizens For Transparency, Inc. No corporate funds shall be deposited in a personal account or commingled with personal funds.

9.2 Authority to establish accounts. The Board of Directors authorizes the Corporation to establish checking, savings, and other appropriate deposit accounts and to execute bank resolutions and account agreements necessary for their administration. The Board shall designate the persons authorized to open, administer, and close accounts and to communicate with financial institutions.

9.3 Authorized signatories. The founding Co-Chairs, Kirk Lyman-Barner and Kaitie Hall Minich, may act as initial authorized banking representatives upon adoption of a Board banking resolution and completion of the financial institution's required documentation. The Board may designate additional or replacement signatories by resolution. No individual acquires unrestricted spending authority merely by being a signatory.

9.4 Withdrawals and controls. Payments, electronic transfers, checks, and withdrawals shall follow the approval thresholds in Section 8.2 and any stricter written Board policy. No authorized person may approve a payment to themselves. The Treasurer shall arrange regular reconciliations, and the Board shall receive periodic account reports.

9.5 Changes in banking authority. An authorized bank signatory may be added, suspended, or removed by a resolution adopted by the Board of Directors at a duly noticed meeting with a quorum, by the vote required under Section 5.3, or by valid written consent under Section 5.5. The resolution shall identify the Corporation and affected account(s), name the person whose authority is changed, state the effective date, identify all continuing and replacement signatories, and designate a director or officer to certify and deliver the resolution and complete the bank's required forms. The affected signatory's consent or signature is not required solely because their authority is being revoked. The

Board may take such action without removing the person as a director or officer; removal from those positions is a separate corporate action under these Bylaws and applicable law.

9.6 Bank notice and implementation. Promptly after Board action, a continuing authorized Co-Chair, Treasurer, Secretary, or other director designated by the Board shall deliver to the bank a certified copy of the adopted resolution, an incumbency or secretary's certificate if requested, and updated signature cards, online-banking access forms, and other documentation required by the bank. Certification shall be signed by the Secretary if available and not affected by the change; otherwise by a disinterested director expressly designated in the resolution. The removed signatory need not sign the certification. The Corporation shall request written confirmation of the bank's implementation, revoke affected electronic credentials and payment instruments, and preserve the resolution, proof of delivery, and bank acknowledgment with corporate records. Board action changes internal authority when effective under the resolution; the Corporation shall not assume the bank has implemented the change until the bank confirms it.

ARTICLE X — CONFLICTS OF INTEREST

10.1 Disclosure. Directors, Co-Chairs, and other officers shall disclose actual or potential financial or personal conflicts promptly and annually in writing.

10.2 Review. An interested person shall not vote on the affected transaction. Disinterested directors shall determine whether an arrangement is fair, reasonable, and furthers the Corporation's exempt purposes; alternatives and the decision shall be recorded.

10.3 Public trust. No director, Co-Chair, other officer, or employee may use corporate assets or confidential information for personal advantage. The Board may adopt stricter independence rules for relationships involving government entities or project developers.

ARTICLE XI — INDEMNIFICATION AND INSURANCE

11.1 Indemnification. To the extent permitted by Georgia law and consistent with § 501(c)(3), the Corporation may indemnify directors, Co-Chairs, and other officers for actions taken in good faith in their corporate capacity. No provision shall require indemnification prohibited by law.

11.2 Insurance. The Board may obtain directors-and-officers liability and other appropriate insurance.

ARTICLE XII — AMENDMENTS AND DISSOLUTION

12.1 Amendments. These Bylaws may be amended by a two-thirds vote of directors then in office at a meeting with advance written notice of the proposed amendment, subject to law and the Articles.

12.2 Dissolution. Upon dissolution, after payment of liabilities, assets shall be distributed for one or more exempt purposes within the meaning of IRC § 501(c)(3), or to the federal government or a state or local government for a public purpose.

ADOPTION CERTIFICATE

These Bylaws and Operating Agreement were adopted by the Board of Directors of Sumter County Citizens For Transparency, Inc. on October 13, 2026, at a duly convened meeting or by legally sufficient written consent.

Founding Co-Chair, Kirk Lyman-Barner: _____ Date: 10/13/2026

Founding Co-Chair, Kaitie Hall Minich: _____ Date: 10/13/2026

Founding Director and Treasurer, Lisa Courtney: _____ Date: 10/13/26

NOTARIAL ACKNOWLEDGMENT — BYLAWS

State of Georgia, County of Sumter

Acknowledged before me on Oct. 13, 2026, by Kirk Lyman-Barner, Kaitie Hall Minich, and Lisa Courtney, who personally appeared and acknowledged executing this instrument in their stated capacities.

Notary Public: _____ [SEAL]

My commission expires: August 22, 2027

TIFFANY PRICE NOTARY PUBLIC GEORGIA EXPIRES August 22, 2027 SUMTER COUNTY, GA